RATIO / CASE READING SHEET

Kazakhstan v. Alnur Ilyashev

TrialWatch (Clooney Foundation for Justice) | kazakhstan-v-alnur-ilyashev | Kazakhstan | 2022

Extractive reading sheet | local source passages; no model conclusions

Source excerpts are reading leads, not a case summary or established findings. Read the surrounding passages and identify the speaker before relying on them.

Presumption of innocence wording

[...] elements of Article 274. The judgment convicting Ilyashev thereby violated the presumption of innocence. Beyond fair trial rights, the proceedings violated Ilyashev’s right to freedom of expression. The prosecution was based solely on Ilyashev’s criticism of Nur Otan, speech that warranted heightened protection given its role in public debate. [...]

Stored text line 111

Charge / offence wording

[...] is criminal prosecution was neither necessary nor proportional, the bringing of charges for the dissemination of false information contravened his right to freedom of opinion and expression, a right that is quintessential in a democratic society and that merits heightened protection with respect to commentary on holders of public [...]

Stored text line 59

Sentencing / detention wording

[...] nd exert[s] influence on media through a variety of means, including detention, imprisonment, criminal and administrative charges, laws, harassment, licensing regulations, and internet restrictions.”3 In particular, a number of prosecutions have been initiated under Article 274 of the Kazakh Criminal Code. Article 274 proscribes [...]

Stored text line 152

Source: https://cfj.org/wp-content/uploads/2023/07/fair-trial-report-kazakhstan-alnur-ilyashev.pdf

Source text SHA-256: 53cb07dd06ad1ece | Saved original available in the local case library